

Article I, Section 1 of the California Constitution declares that the right to privacy is “inalienable.” This provision as well as Section 2031.060, separately or in concert, have led appellate courts of California to approve various protective orders for financial information. (See *G.T. Inc v. Superior Court* (1984) 151 Cal.App.3d 748, 752.) When an individual’s right of privacy in his financial affairs conflicts with the public need for discovery in litigation, the competing interests must be carefully balanced. (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal. 3d 652, 657.)

Defendants submit the declaration of counsel, Laura Petrie, and argue that a protective order is necessary for the following reasons:

- The protective order sought is intended to limit the use and disclosure of information, testimony, and documents produced or provided in this case to this case only and to prevent disclosure to third parties and litigants engaged in other litigation with Defendants. (Petrie Decl., ¶ 3.)
- The “other litigation” is entitled *Damian Collins v. Garfield Langmuir-Logan, Ethan Logan, Moreno Valley Gateway, LLC, and MVG Turnpike, LLC*, Case No. 30-2019-01092238-CU-PO-CJC (“Collins Case”), pending before Judge Strickroth. That case involves mostly breach of contract claims, but there are also causes of action for breach of fiduciary duty, aiding and abetting breach of fiduciary duty, and a fraud cause of action against some of the same defendants in this case. (Id. at ¶ 4.)
- Counsel for Plaintiff Damian Collins in the Collins Case are Dan Harrison and Wilfred M. (“Mike”) Wright of Berger Harrison APC. (Id. at ¶ 5.) [Berger Harrison APC was also the counsel for former party Plaintiff Nicholas Sanders.]
- Plaintiff also previously obtained a Judgment against Garfield Logan in Case No. 30-2011-00468519-PR-TR-CJC (“Judgment Case”). Sanders has been conducting collection work in an effort to collect the judgment, including a seeking the debtor exam and production of documents from Garfield, and issuance of subpoenas for documents and depositions to every one of Defendants herein (as well as numerous other entities). (Id. at ¶¶ 7, 8.)
- Because of Mr. Berger’s stated belief that he could share any documents with Mr. Harrison or Mr. Wright,

		defendant Ethan Logan sought and obtained a protective order in the Judgment Case. (Id. at ¶ 9, Ex. 2.) • After advising Defendants and the court that the negotiated settlement was unilaterally terminated by Mr. Sanders, there is now a new plaintiff – John Collins (or any entity he is associated with Justice Meritus LLC) • John Collins is the father of Damian Collins, the plaintiff in the Collins Case. Now that John Collins is involved in this case, a protective order is even more critical because any documents or information discovered in this case by John Collins in his capacity as Plaintiff will likely be handed over to Damian Collins in the Collins Case. • It is believed that Mr. Harrison and Mr. Wright seek to obtain the discovery from this case as a means to exert pressure on Defendants in the Collins Case and to obtain improper financial discovery without a court order as required by Civil Code § 3295. (Motion, p. 16:2-4.) • Damian Collins has never obtained an order from the Court in the Collins Case permitting such financial discovery prior to trial required by Civil Code §3294 and §3295, and thus, would never be permitted to obtain such information unless and until liability for punitive damages is determined. (Petrie Decl., ¶ 20.) Defendants have shown “good cause” for a general protective order to protect the private and confidential documents of Defendants. Plaintiff has not raised any arguments that sufficiently override Defendants right to privacy regarding their financial documents. Although Plaintiff wishes to share documents in this case with the parties in the Collins Case, Plaintiff has not shown a reason why this is necessary other than to argue that “the protective order will impede the ends of justice.” (Opposition, ¶ p. 10:8-10.) Such argument is insufficient to permit the disclosure of sensitive information to parties outside this litigation. Moreover, the parties in the Collins Action are subject to the same discovery rules as the parties in this case. If the plaintiff in the Collins Action is entitled to obtain the financial documents of Defendants, then it can obtain such documents in that case. To allow the plaintiff in the Collins Action access to Defendants financial documents that he would otherwise not be entitled to would create an unfair advantage.
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		Accordingly, the Court GRANTS the motion for protective order. Defendants submit a proposed protective order as Exhibit 4 to the declaration of Laurie Petrie. The parties appear to agree with most of the substance of the protective order, except for paragraph 8. The Court finds that paragraph 7 provides Defendants with sufficient protections, and therefore, finds paragraph 8 unnecessary. Defendants to submit a proposed protective order consistent with this ruling. Moving party to give notice.
14	30-2023-01325265 Doe 1 vs. Anderson	1. Motion for Protective Order <u>Motion 1</u> Defendant Richard Andersen’s (Defendant) Motion for Protective Order (Motion) is DENIED. Defendant Richard Andersen moves for a protective order staying his deposition “until such time as the facts of Plaintiffs’ complaint can be more fairly understood and the parties can conduct discovery that does not abridge Defendant’s Fifth Amendment right against self-incrimination.” (Motion, 13: 17-22.) Defendant argues that a protective order must issue because “a real possibility of Criminal Action remains open against Defendant.” (Motion, 10:8-9.) Defendant further argues that this is because any information Plaintiffs seek during discovery will force Defendant to assert his Fifth Amendment rights, and forcing the Court to rule on this many assertions of the Fifth Amendment will be a waste of the parties and the Court’s resources. However, as to the status of any criminal action or investigation, Defense counsel Ed Flores only attests: “the investigation was proceeding as late as October 2022. The status of this investigation is currently unknown...” (Flores Decl., ¶ 2.) This does not demonstrate that Defendant currently faces a threat of criminal prosecution. Further, Defendant’s Motion does not cite to legal authority which demonstrates that a stay is warranted. Defendant primarily relies on <i>Pacers, Inc. v. Superior Court</i> (1984) 162